Deloitte.

LAKESHORE HOSPITAL AND RESEARCH CENTRE LIMITED

Proposal for Advisory Services

Private and Confidential

April 2026

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Our Understanding of your Requirement

Setting the Context

Company Background

Lakeshore Hospital And Research Centre Limited Limited ("VPS Lakeshore"), part of the VPS Healthcare network, is a leading multi-super specialty tertiary care hospital based in Kochi, established in 1996 and operational since 2003.

The hospital operates a large-scale, integrated healthcare delivery model with ~600+ beds and 35+ specialties, and a multidisciplinary team of highly qualified medical professionals, including more than 160 full-time doctors and a significant nursing workforce, and is accredited by the National Accreditation Board for Hospitals & Healthcare Providers (NABH).

Over the years, the hospital has achieved several clinical milestones and continues to strengthen its position as a center of excellence in tertiary and quaternary healthcare, with a focus on innovation, patient safety, and holistic care delivery.

Source: Discussions with Management and information available in public domain

Current Requirements

VPS Lakeshore is seeking to partner with a trusted and experienced advisor to support on strengthening its business processes and internal control framework, including development of Risk Control Matrices (RCMs). The proposed engagement will encompass:

- ✓ Review the **existing processes** to identify gaps and recommend improvements for better standardization, controls, and role clarity.
- ✓ Develop a **Risk Control Matrix (RCM)** aligned with the Internal Financial Controls over Financial Reporting (ICFR) framework covering key risks, controls, ownership, and monitoring.
- ✓ Post completion of the process review and based on management's requirements:
  - Update and formalize **SOPs and policies** incorporating redesigned processes and controls
  - Provide **implementation support** through guidance on control deployment, stakeholder alignment, and adoption of revised processes and controls

Deloitte's Value Proposition

Streamline processes by removing redundant and inefficient activities, suggest leading practices

Aligned with key risks in the business - Focus on critical / emerging risks that matter

Sector experience - Validation of control environment and alignment to relevant sector practices

Strengthening the **internal control environment** through a structured ICFR aligned approach

Pro-active identification of **opportunities for control automation and digitization**

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Approach and Methodology

Our integrated approach

Integrated

Process understanding

Review of transactions / documents

Development of recommendations

Process Review

- Opportunities for process improvement
- Comparison with the leading practices
- Recommendations for strengthening controls and scalability
- Standardization of business processes

Risk Control Matrix (RCM) design

- Assess controls are properly designed
- Risk and Control mapping
- Financial reporting risks
- Control Design Evaluation (TOD – Test of Design)
- Compliance-aligned RCM

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Process Review

Process Review approach overview

	Stage 1: Planning and Scoping	Stage 2: Fieldwork			Stage 3: Reporting
Phase	**Engagement Planning**	**Process Understanding and work program**	**Conducting Process Review**	**Preparation of Draft Report**	**Reporting**
Activities	• **Planning** for Process Review of the scope areas as per the agreed calendar • **Align right skills and experience** based on areas for review • Establish a **turnaround protocol** to align expectations between Deloitte Team and process owners • Establish a **governance model** to ensure timely delivery	• Conduct **detailed process walkthroughs** and obtain understanding of the in-scope processes • Incorporate insights of specialists • Design **work program** and detailed testing procedures • Release **initial data request**	• Focus on **360-degree** view of risks • Perform data analysis, review of transactions / documents • Conduct **discussions with the process owners** on identified gaps • Conduct **root cause analysis** for gaps identified	• Consolidate all valid queries and submit **query tracker** to finalize the observations • Prepare **draft report** and incorporate recommendations • The recommendations would include **short term** and **long-term action plans.**	• Obtain **management inputs** on the Process Review and internal quality reviews • **Validate management comments** for relevance and completeness and **finalize review report** • **Discuss the report** with the CEO, CFO, and other management personnel • Issue **final report** to the management
Outcomes	• Review Plan with timelines • Deliverables and its reporting formats	• Finalize work program, • Request for Information (RFI)	• Completion of review and gap identification • Root cause analysis	Draft Process Review report	• Final Process Review report • Recommendations

Timely reporting and communication, quality reviews and data analytics (wherever applicable) throughout the engagement

Focus Areas

- Enhancement opportunities for **IT/ERP based controls**
- **Co-develop** recommendations basis **leading control practices**
- **Policy & Procedure** compliance and enhancement opportunities
- **Adherence to applicable statutes**
- Analytics based **trends & insights**

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Focus areas during process reviews

We focus on protecting and enhancing value to stakeholders while conducting Process reviews

- **Opportunities for process improvement**
- **Focused approach for control validation**
- **Assurance on control design and effectiveness**
- **Enhancement of operational and system controls**
- **Focus on fraud and business process risks**
- **Identification of possible cost escalations / revenue leakages**
- **Comparison with relevant comparable practices**
- **Compliance to company policies and procedures**

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Sample Deliverables

Brief insightful summary for the senior management

1. Concise
2. Risk rated
3. End-to-end view of process

Executive Summary

S. No	Process	Particulars	Business Impact			Root Cause			R
						D	O	S	
1	Corporate Loan	Absence of documented risk categorization parameters and system-based risk categorization	-	✓	-	✓	-	-	-
2	Corporate Loan	Non-issuance of Key Fact Statement (KFS)	-	✓	-	✓	-	-	-
3	Corporate Loan	Loan documentation review of borrowers to be strengthened	-	✓	-	-	✓	-	-
4	Corporate Loan	Enhancing usage of Corporate Loan (CL) Module	-	-	-	-	-	-	-

Observation Risk Rating Criteria (1/2)

Criteria	High	Medium	Low
Financial	Impact greater than 1% of the spend / revenue associated with the process under review.	Impact between [illegible] of the spend / revenue associated with the process under review.	Impact less than 0.5% of the spend / revenue associated with the process under review.
Financial Reporting	Incorrect financial reporting impacts more than 1% of the spend / revenue associated with the process under review.	Incorrect financial reporting impact between 0.5% to 1% of the spend / revenue associated with the process under review.	Incorrect financial reporting impact less than 0.5% of the spend / revenue associated with the process under review.
Operations	**Company Policies:** Governance / ethics-related deviations and violation of significant Company policies. Absence of control impacting a material sub-process	**Company Policies:** Violation of company policies and procedures.	**Company Policies:** Exceptions noted do not impact the overall process / control environment. Opportunities for process improvement which does not have significant bearing on the control / governance aspects
	Contractual Obligations: Non-compliance to contractual requirements including breach of confidentiality or privacy etc.	**Contractual Obligations:** Non-compliance to operational clauses.	**Contractual Obligations:** Non-compliances with no financial and material impact.
	Sample Testing: Exceptions noted based on operational effectiveness testing of sample transactions - more than 50% of the sample size	**Sample Testing:** Exceptions noted based on operational effectiveness testing of sample transactions - less than 50% and up to 25% of the sample size	**Sample Testing:** Exceptions noted based on operational effectiveness testing of sample transactions - Less than 25% of the sample size
	Information Technology: Damage to IT assets, system failures impacting operations, loss of data, breach of confidential information, unauthorized access (based on Auditor's professional judgement)	**Information Technology:** Application failures, delayed recovery of IT systems and data leading to loss of productivity/ data	**Information Technology:** Error in system generated report which has manual mitigating controls

Illustrative

Root Cause definition

The report to follow in the enclosed slides is structured in the following manner:

- Root causes :

Indicator	Category	Description
D	Design Gap	• Exceptions noted, as a result of non-existence / limitations in existing policies and processes.
O	Operational Gap	• Exceptions noted, as a result of non-adherence to laid down procedures, policies and guidelines
S	System Gap	• Exceptions noted, as a result of limitation of information technology systems supporting the organization or under usage of existing IT systems
R	Repeat Observation	• Observations reported in previous audits, and repeating in the current review period

Detailed report for the process owners

1. Risk rating and Implications
2. Specific Recommendation
3. Implementation plan

2 Non-issuance of Key Fact Statement (KFS)

D ✓ O S

Observation in detail

Background
As per RBI/2024-25/18 DOR.STR.REC.13/13.03.00/2024-25 Key Facts Statement (KFS) for Loans & Advances,
- REs shall provide a KFS to all prospective borrowers to help them take an informed view before executing the loan contract, as per the [illegible] format.
- The KFS shall also include a computation [illegible] annual percentage rate (APR), and the amortization schedule of the loan [illegible] tenor. APR will include all charges which are levied by the RE.

Observation
RBI has prescribed a standardized format for issuance of KFS. Although the details covered under KFS are provided to the customer, the standardized format of KFS has not been implemented.

Illustrative

Recommendation

- KFS in the format prescribed by RBI should be issued to borrowers prior to signing the Loan Agreement.

Management Action Plan

- We incorporated the same in our Facilitate agreement. All the relevant points were added in the format but its not in the RBI prescribed format. Next sanction onwards will provide in RBI prescribed format

Responsibility:
Due date:

Note: The reporting template will be aligned with VPS Lakeshore's reporting format after discussion with the Management

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Risk Control Matrix (RCM) design

Indicative Process-wise Steps & Responsibilities

PHASES OF THE PROJECT

	Kick-off meeting & setting expectation	Review of As-Is RCM	Gap Identification & recommendations	Draft RCM Documentation & TOD	Finalization of RCM
Deloitte Professionals	Leverage the outcomes and deliverables from the process review			Develop draft RCM with short term improvement Perform Test of Design Effectiveness (TOD)	Conduct trainings on revised controls
Client's Process Owners				Review the draft version for acceptance Provide management responses for the gaps identified	Sign-off on finalized RCM
Deloitte Team Lead				Review & discuss draft RCM and Gap Report	Finalization of RCM
Deloitte Senior Management					Discussion of final RCM with senior management
Client's Senior Management				Acceptance on RCM with changes done on processes	Setting the 'Way forward' for the company

Note: *RCM framework will be covering key risks, controls, ownership, and monitoring mechanisms for the defined scope areas.*

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Scope of work

Scope of work

Scope of Review - Based on our discussion with the Management, we propose the following scope and plan:

Domain	Focus Area
Materials & Stores	Inventory classification, valuation, movement controls
Human Resources	Headcount, staff categorisation, payroll mapping
Cost Accounting	Cost centre structure, miscellaneous cost breakup
Revenue & Receivables	Billing components, Tariff masters, Receivables accounting
Data & Controls	Master data governance, controls framework

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Scope of work

Materials & Stores Management

Review of process relating to:

- Inventory classification framework, including segregation of consumables, capital assets, and pharmaceuticals.
- Analysis of stock movement to identify non-moving, misallocated, lost, and expired items.
- End-to-end purchase-to-consumption cycle controls, covering indenting, receipt, issuance, and reconciliation.
- Item master data governance, including identification of miscoding, misclassification, and data integrity issues.
- Three-way matching controls for materials and services, including linkage with procedure-level standard costing.
- Inventory optimization practices such as ABC analysis, stock level management, and formulary management.
- Write-off, expiry management, stock take and stock adjustment protocols.

Human Resources & Personnel Records

Review of process relating to:

- Staff categorization across clinical, paramedical, administrative, and support functions.
- Identification of duplicate, cross-category, and headcount records
- Accuracy of departmental staff mapping and its impact on cost allocation and reporting.
- Personnel master data for completeness, accuracy, and adequacy of controls over updates and version management.
- Statutory and other payroll deductions.

Cost Accounting & Accounting Systems

Review of process relating to:

- Accounting systems in use and alignment with operational requirements.
- Cost center structure and departmental cost allocation methodologies.
- Analysis and reclassification of costs recorded under miscellaneous or unanalyzed heads,
- Rationalization of the chart of accounts and alignment with cost center mapping.
- Management reporting inputs for budgeting and P&L analysis.

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Scope of work

Revenue & Receivables

Review of process relating to:

- Revenue recognition and framework in line with applicable statutory requirements.
- Reconciliation process to ensure completeness and accuracy of revenue and receivables.
- Automated billing process.
- Approval and application of discounts.
- Tracking mechanisms for Insurance, Scheme, Corporate, and Bond billing.
- Ageing analysis and monitoring over receivables.

Data Governance & Controls Framework

Review of process relating to:

- Data governance framework for record-keeping.
- Maker–checker, approval, and exception-handling controls across key data domains.
- Data ownership, validation protocols, and ongoing data maintenance procedures.
- Master data management and database-level controls.
- Maintenance of audit trail.
- Restriction over backdated entries and postings.

Note: *Restricted to master data pertaining to the defined scope areas.*

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Scope of work

Key assumptions

- Review will be based on data and information provided by VPS Lakeshore (client). Our review will be based on samples selected as per Deloitte sampling methodology. Ensuring accuracy of data provided for review will be responsibility of Client, however we will also perform reasonable checks.
- Client should appoint a member of management who will oversee the engagement and assume the responsibility for our services.
- Scope does not include implementation of any recommendations made as part of process review report.
- Our reports are provided for informational purposes only and are not to be relied upon as legal advice. This service is not a substitute for the advice of a legal attorney.
- The core execution team may vary depending on the availability and the start date of the engagement. In case of non-availability of proposed resources, they shall be replaced with equally competent resources.
- Deloitte will interact only with designated process owners or engagement coordinators. Any communication with the third-party has not been envisaged as part of this engagement.
- Services shall not entail any design/implementation of any financial information system or any other system.
- The procedures to be performed will not be an audit or review, or a compilation of the Company's financial statements or any part thereof, nor an examination of management's assertions concerning the effectiveness of the Company's internal control systems. Accordingly, our performance of the procedures will not result in the expression of an opinion or any other form of assurance on the Company's financial statements or any part thereof, nor an opinion or any other form of assurance on the Company's internal control systems or its compliance with laws, regulations, or other matters.

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Plan of work

Phases		Month 1	Month 2	Month 3	Month 4	Month 5
Process Review	Process Understanding					
	Gap Assessment					
	Draft Report					
	Final Report					
RCM Design						

Note:

- Schedule of engagement will be finalized in consultation with the process owners. Above mentioned timeline is estimated based on our experience of similar engagements.
- Above timelines are subject to availability of process owners for meetings and discussions, and information/data/records being made available on timely basis
- We will share weekly status updates and have meetings to discuss the progress with the Management on a regular basis

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Our Team

Our Team

Engagement Team

Akhilesh Varghese
Engagement Partner

- Make key decisions, sign-off on major deliverables and has overall project responsibility
- Provide final review of engagement deliverables
- Ensure quality of overall deliverables

Girish Babu
Engagement Director

- Participate in meetings with senior management
- Perform second level review of deliverables / reports
- Provide required on-field guidance to the team

Sujeet Kumar
Engagement Manager

- Ensures project objectives are met within the timing and scope outlined by management
- Manage communications with management and provide progress update to stakeholders
- Manage resource deployment and issue resolution
- Perform first level review of deliverables

Roshan Alexander
Engagement Lead

- Conduct all assigned tasks in the project
- Interface with client personnel on-site
- Draft required deliverables

Engagement Team

We will endeavour in making available pool of professionals from nearest Deloitte offices to execute day-to-day Process Review

IT Specialist

Jayashree C B
Director

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Professional Fees

Professional Fees

- Our fee is based upon our current understanding of the project requirements, our proposed approach, our estimate of the level of effort required, our roles and responsibilities, as required and defined in this proposal.

- Accordingly, we propose following fees as per your requirement.

Particulars	Fees (INR)
Process Review	**23,00,000**
Development of RCM & Test of Design	**8,00,000**
Implementation Support - *Fees will be determined based on the outcome of Process Review and Development of RCM*	TBD

- We will charge out of pocket expenses comprising both directly incurred costs such as travel, conveyance etc. (which will be billed at actual), and an amount equal to 3% of the value of fees to recover incidental expenses such as technology, telecommunication costs, etc. that are not always identifiable to specific engagements, plus indirect taxes at applicable rates. These invoices will be payable upon receipt.
- The fee quoted above is exclusive of GST as applicable and other applicable taxes and levies and which will be charged at actuals.
- We believe that we have priced our fee fairly and appropriately for the extent of work you have requested. We also believe that our fee demonstrates our willingness to work together.
- We believe that we are extremely well positioned to work with you on this mandate and as such we are viewing this as an opportunity to demonstrate our value in this space. We trust that our fees represent excellent value considering our extensive experience, the skills of team members selected to serve this engagement, and the resources that will be made available to you during this engagement.

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Credentials & Case Study

Credentials

* Includes work done by other Deloitte member firms

Select Clients served by Deloitte India	
RPG Life Sciences Limited	Kauvery Hospital Medical Services Private Limited
Rukmani Birla Hospital	Tata Medical Centre Trust
Sentiss Pharma Private Limited	The Himalaya Drug Company
Sentiss Rus LLC	Nanavati Super Speciality Hospital
Signet Chemical Corporation Private Limited	Neuberg Anand Reference Laboratory
Ravindranath GE Medical Associates Private Limited	Nova Pulse IVF Clinic Pvt Ltd
Sri Kauvery Medical Care India Limited	Novartis AG
SRL Diagnostics Private Limited	Par Formulations Private Limited
SRL Limited	Pfizer Limited
Sanofi Healthcare India Private Limited	HealthCare Global Enterprises Limited
Sanofi India Limited	Incor Hospitals (Vizag) Private Limited
Sanofi Pasteur India Private Limited	Incor Hospitals Private Limited
Sanofi-Synthelabo India Private Limited	Indira IVF Hospital Private Limited
TTK Healthcare Limited	Instrumentation Laboratory India Private Limited

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Case Study

Internal Audit of a leading diagnostic service provider

Background

The client is a leading diagnostic service provider, with its presence across India. The laboratories are accredited by CAP & NABL The client required assistance in the following:

- Conducting Internal Audit (IA) of its key business processes and development of Audit Work Program for key business processes
- Reviewing processes and controls around core and non-core businesses
- Provide recommendations to improve the overall control environment

Approach

- Obtain an understanding of the business and IT environment
- Develop initial IA work program prior to audit commencement
- Perform data validation and analytics for enhanced coverage and assurance
- Performed detailed review around vendor contract verification, inventory management, reagent and consumables tracking, revenue billing (including cash and POS controls)
- Identify process gaps and provide recommendations in consultation with the stakeholders
- Presented the report to Senior Management

Benefits to the Client

- Evaluation of risk and governance policies
- Gaps identified and highlighted areas of process improvements
- Recommended areas of automation for enhanced controls in ERP
- Review of remediation status for previously identified issues

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Case Study

Internal Audit of a leading IVF Hospital Chain and path labs

Background

The client is a chain of specialty fertility clinics that has 165+ centers including path labs spread across more than 20 states in India. The client required assistance in the following:

- Conducting Internal Audit (IA) of its key business processes and development of Audit Work Program for key business processes
- Reviewing billing and collection, procurement, HR and Payroll, Inventory processes
- Reviewing adherence to local regulatory requirements
- Provide recommendations to improve the overall control environment

Approach

- Obtain an understanding of the business and IT environment
- Develop initial IA work program prior to audit commencement
- Perform data validation and analytics for enhanced coverage and assurance
- Review of billing and collection including reconciliations, procurement, HR and Payroll and Inventory processes
- Conducted lab visits to ensure compliance with local regulations
- Identify process gaps and provide recommendations in consultation with the stakeholders
- Presented the report to Senior Management

Benefits to the Client

- Standardized Audit Work Program for key business processes
- Gaps identified and highlighted areas for process improvement
- Recommendation to enhance the overall control environment
- Regular implementation status review of agreed action plans
- Recommended areas of automation for enhanced controls and inputs for ERP implementation partner on automation / IT enablement areas

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General Business Terms

General Business Terms

Definitions

"**Affiliate**" means any entity which is controlling, controlled by, or under common control with the Client; **"Claim"** means any claim or proceeding of any nature (whether in contract, tort, breach of statutory duty or otherwise and including, but not limited to, a claim for negligence); **"Client(s)"** means the entity (ies) to which the Engagement Letter is addressed and whose name is reproduced above; **"Contract"** means the EL and the GBT; **"Deliverable(s)"** means any advice, reports, work product or other deliverables identified or described in the EL as agreed to be provided to the Client as a part of the Services ; **"DTTL"** means Deloitte Touché Tohmatsu Limited, a UK private Company limited by guarantee; **"Deloitte Entity"** means a member firm of DTTL (including us), but not DTTL itself, and their respective subsidiaries and affiliates, their predecessors, successors and assignees, all partners, associate partners, principals, members, owners, directors, employees, and agents of all such entities. Each Deloitte Entity is a separate and independent legal entity. DTTL does not provide any services to clients and has no responsibility for any Deloitte Entity; "EL" means the engagement letter entered into between you and we, and any schedules or annexures forming part of it (other than these GBT); **"GBT"** means this document titled 'General Business Terms'; **"Losses"** means any losses, Claims, liabilities, damages, costs or expenses in any way relating to or arising out of the Contract or the Services; "Services" means the services and Deliverables described in the EL; **"Subcontractor"** means a third party (other than a Deloitte Entity) to whom we subcontract any of the Services; **"you", "your"** refer to the Client(s); **"we", "us", "our", "DTTILLP"** refer to Deloitte Touché Tohmatsu India LLP.

About this Contract

This Contract sets out the terms on which we agree to provide Services to you. You and we are acting as principals and neither party may bind the other party to legal obligations unless the other party has agreed to, through a validly executed document, in specific instance(s).

Services

We agree to provide Services in accordance with the Contract. You acknowledge that the scope of the Services is sufficient for your purpose.

We may subcontract any Services to any other Deloitte Entity or with the prior written consent of the Client to any Subcontractor. Regardless, your contractual relationship is only with us and not with any other Deloitte Entity, Subcontractor or DTTL and we alone (and not any other Deloitte Entity, Subcontractor or DTTL) continue to be responsible and liable to you under the Contract and for the Services. Accordingly, you will not bring any Claim in any way in respect of or in connection with this Contract or the Services against any Deloitte Entity (except us), any Subcontractor or DTTL.

You may rely only on our final Deliverable. If you wish to rely on drafts or our oral advice, please let us know so we may provide a suitable written final Deliverable on which you may rely. We shall not be responsible if you or others choose to rely on, act or refrain from acting on the basis of any drafts or oral advice.

Use and Disclosure of Deliverable(s): Notwithstanding anything contained herein, you shall not disclose to any other person the Deliverable(s), or any part of them without our express written consent, except (i) to the extent applicable laws, regulations, rules, and professional obligations prohibit limitations on disclosure, or (ii) as agreed under the Contract. You shall use the Deliverable(s) solely for the purposes specified in the EL and, in particular, shall not, without our prior written consent, use the Deliverable(s), or any part of them in connection with business decisions of any other person or for advertisement purposes. You shall not refer to the Services (including Deliverable(s)) or us as provider of the Services in any communication or material provided to any other person. All Services (including Deliverable(s)) are only intended for your benefit. The mere receipt of the Deliverable(s), or any part of them by any other persons is not intended to create any duty of care, professional relationship or any liability between those persons and us. As a consequence, if copies of the Deliverable(s) (or any information derived therefrom) are provided to others under the above exclusion, it is on the basis that we owe no duty of care or liability to them, or any other persons who subsequently receive the same. We accept no liability to any person other than you in connection with the Contract or Services. You agree to pay us for Losses in relation to any claim by any person other than you in relation to the Services.

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General Business Terms

Services do not constitute the following: (a) audit, assurance / attest, or any review in accordance with the generally accepted auditing or accounting standards or (b) legal advice or services.

Unless we have specifically agreed to in the EL, we shall not provide advice regarding the financial accounting treatment of any transaction arising from the Services or take responsibility for any financial reporting with respect to the Services.

In performing the Services, unless otherwise expressly stated in the EL, we will not be deemed to know or required to use information from any other services performed by us whether for you or any other third party, whether such information might be considered material to you or not.

Your Responsibilities

- To enable us to provide the Services, you agree to cooperate with us and, among other things: (i) provide us with reasonable facilities and timely access to data, information and your personnel; (ii) be responsible for the actions and decisions made by your personnel, representatives and agents, for the accuracy and completeness of all data and information provided by you or on your behalf, and for the implementation of, as you consider appropriate, any advice provided as part of the Services (iii) obtain any applicable consents in respect of our using/processing any confidential/personal information for performing the Services. We may provide our Services relying on the information you make available to us and your decisions and approvals. You acknowledge that our performance shall be dependent upon the timely performance of your responsibilities under the Contract.

- You shall be solely responsible for, among other things: (i) making all management decisions and performing all management functions; (ii) designating one or more individuals who possess suitable skill, knowledge, and/or experience, preferably within senior management to oversee the Services; (iii) evaluating the adequacy and results of the Services; (iv) accepting responsibility for the results of the Services; and (v) establishing and maintaining internal controls, including, without limitation, monitoring ongoing activities.

- Unless the EL specifies other arrangements, you agree that any Deliverables will be deemed accepted by you (and the Services, or the relevant part of them complete) within 10 days of their delivery, upon their delivery in their final form or when you first make use of them in its business, whichever comes first.

Our Responsibilities

- This is a services contract. We warrant that we shall perform the Services in good faith and in a professional manner.

- We will endeavour to supply the Services in accordance with any timeline referred to in the EL or otherwise agreed by the parties in writing. However, unless the parties specifically agree otherwise in writing, all dates given by us or specified by you for the Services are intended for planning and estimating purposes only.

- Notwithstanding anything contrary in this Contract, DTTILLP shall comply with all laws and regulations of India as applicable in its operation of business rendering the services under this Contract. VPS Lakeshore shall in the event of any proven violations of this clause by DTTILLP, have an option at its sole discretion to terminate this Agreement upon intimation.

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General Business Terms

Fees

You agree to pay us fees for our Services and: (a) all applicable taxes and statutory levies (including Goods and Services Tax); and (b) unless stated otherwise in the EL, our out-of-pocket expenses at actuals (collectively "Charges"). Our invoices are payable upon your receipt. We may apply an interest calculated at the rate of 1% per month for each day our invoice(s) remain(s) unpaid for 1 (one) month or more from your receipt. In addition to any other right, we are not obliged to continue providing the Services where our invoices are overdue.

- At the time of payment of invoices, you may deduct income tax at source at the applicable rates ("TDS") as necessary to comply with law in India, provided that, you give us documentation and confirmations required under law for those deductions, in a timely manner using our correct details. You and we shall each comply with our respective responsibilities under the applicable tax regime (currently Goods and Services Tax regime) as service provider and service recipient.

- Any estimate of the fees involved in the Services will be based upon our assessment of the work involved, taking account of any assumptions set out in the EL. Unless we have agreed otherwise in the EL, our fees may be adjusted, for example, if the Services prove more complex or time consuming than expected.

- You agree to pay us for any costs that any Deloitte Entity or Subcontractor may incur or bear in complying with any legal, professional, regulatory, or other equivalent disclosure requirement relating to any of the Services imposed in any proceedings or regulatory process not involving any substantive claim or proceeding against any such Deloitte Entity or Subcontractor. Where legally and reasonably practicable we will notify you of the disclosure.

Term & Termination

The Contract comes into effect upon the earlier of commencement of Services or the EL being signed by both parties from 09 October 2024 to 31 December 2024 ('**Term**'). Unless terminated sooner in accordance with its terms, the Contract will continue to be in force: (i) if the EL mentions a validity period, during such validity period; or (ii) if the EL does not mention a validity period, until the Services have been performed. Either you or we may terminate this Contract without cause by giving the other party a prior written notice of at least 1 (one) month. If either you or we are in breach of this Contract and do not remedy the breach within 1 (one) month of receiving the other party's written notice specifying the breach, then the other party may terminate this Contract by giving the party in breach a written notice of 7 days. In addition, either party terminate this Contract by a written notice to opposite party if such party determines that a law, regulation, or anything having a similar import, or a circumstance (including cases where other party's ownership or constitution has changed), makes such party 's performance of the Contract impermissible or in conflict with independence or professional rules applicable to e such party. Upon termination, you agree to pay the undisputed amount to us for all Services performed up to the effective date of termination.

Ownership

- On payment of all of DTTILLP's fees in connection with this Contract, and subject to the terms and conditions contained herein, DTTILLP hereby assigns to Client all rights in and to the Deliverables, except to the extent they include any Deloitte Technologies.

- For purposes of the Contract (i) "Technology" means works of authorship, materials, information and other intellectual property conceived without the use of VPS Lakeshores information or data; and (ii) "Deloitte Technologies" means all Technology created prior to or independently of the performance of the Services or created by a Deloitte Entity or its/their Subcontractors as a tool for their use in performing the Services, plus any modifications or enhancements thereto and derivative works based thereon.

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- For avoidance of doubt, it is clarified that Deloitte Entities shall have the right to use any Deloitte Technology including its works of authorship or other intellectual property that may be included in the Deliverables, to develop for themselves, or for others, materials or processes that may be similar to those produced as a result of the Services.

Limitation of Liability

- Under no circumstance will our aggregate liability for all Losses ever exceed the fees received by us for the Service(s) to which the Losses relate. In circumstances where the Service(s) are for a period exceeding 12 months, the aforementioned limit shall be an amount not exceeding the fees received by us for such Service(s) in the 12-month period preceding to which such Losses relate. For the avoidance of doubt, the foregoing does not seek to limit our liability for fraud, gross negligence, wilful misconduct, breach of confidentiality obligations under clause 10 attributable to DTTILLP, the infringement of intellectual property rights in Deliverables and other liability to the extent the law does not permit limitation. *For the purposes of this Contract, "gross negligence" shall mean conduct of so high a degree as to amount to consciously reckless disregard of professional duty*.

- Where we are liable to you under this Contract and: (a) any other person with whom you have an agreement or with respect to whom you are a beneficiary is also liable to you for the same Losses; or (b) you have contributed to such Losses; then compensation payable by us to you in respect of such Losses will be reduced taking into account the extent of responsibility of each relevant party without taking into account any limit or exclusion placed on the amount payable by such other person or your ability to recover from such other person.

- We will not be liable for Losses arising due to any incorrect, incomplete, or misleading information or documentation provided by any person other than DTTILLP or its Affiliates, any Deloitte Entity, or a Subcontractor or DTTL.

- We will not be liable for any indirect Losses, special, consequential, or punitive damages or Losses, including but not limited to, loss of business or data or profits or goodwill.

- Without any other Deloitte Entity or DTTL or Subcontractors being considered a party to this Contract, the liability cap and exclusions operate to their benefit to the extent it is judicially determined that any of them have any liability under or in connection with the Contract or the Services.

Confidentiality

- We and you each agree to keep confidential the other's information which is either designated in writing as "confidential" or is by its nature manifestly confidential ("confidential information") and not use it for any purpose other than as necessary for availing or provision of the Services. We may disclose your confidential information: (a) to any Deloitte Entity or Subcontractors and to contractors providing administrative and infrastructure/support services, that have agreed to be bound by confidentiality obligations similar to those in this clause 10; (b) to our auditors, insurers or in accordance with applicable professional standards, or in connection with potential litigation.

- DTTILLP shall grant access to any confidential information or data to their respective Affiliates, any Deloitte Entity, or any Subcontractor or DTTL, strictly on a 'need to know' basis under the aegis of a written contract between such Party in this regard, and that such Confidential Information of VPS Lakeshore shall be used strictly for the limited purposes contemplated under the terms of this Contract.

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- In the performance of the Services, DTTILLP any Deloitte Entity or any Subcontractor may communicate or discuss the matters relevant to the Services with your other advisors and may do so free from any obligation of confidentiality.

- Confidentiality obligations of this clause 10 do not apply to information which: (a) shall have otherwise become publicly available through no breach of the receiving party of this clause 10, (b) becomes available to the receiving party on a non-confidential basis from a source other than the disclosing party, (c) is known by the receiving party prior to (or independent of) its receipt from the disclosing party without any obligation of confidentiality with respect thereto; (d) is developed by the receiving party independently without reference to the confidential information received. Confidentiality obligation will not apply to the extent any information is required to be disclosed to comply with any order, request, or requirement to provide information of a regulatory, judicial, government or other authority or a professional body or legal advisors solely for the purpose of obtaining legal advice. The obligations imposed by this clause 10 shall survive the termination of this Contract for a period of one year.

Force Majeure

Neither you nor we shall be liable for any delays or non-performance directly or indirectly resulting from circumstances or causes beyond, your or our reasonable control including without limitation acts of God, any law, order or requirement of any government agency or authority. This does not excuse your obligation to pay us Charges for Services rendered.

Indemnification

You shall indemnify and hold harmless the Deloitte Entities, Subcontractors and DTTL for all Losses arising in connection with any third-party Claim in relation to use or access of Services or Deliverables by any person or entity other than the Client, except to the extent finally judicially determined to have resulted primarily from the fraud of such Deloitte Entities, Subcontractors and DTTL.

DTTILLP shall indemnify, defend, and hold the Client harmless from and against all direct third party claims, demands, actions, costs, Losses, damages and reasonable expenses (including reasonable legal costs and expenses) incurred in connection with DTTILLP's breach of (a) third party intellectual property rights in the Deliverables;; provided that this indemnity shall not apply to in the following cases: (i) the modification of DTTILLP's Deliverables provided hereunder by any person other than DTTILLP or its personnel (ii) Client's wilful failure to use any modification to DTTILLP's Deliverables made available by DTTILLP where use of such modification would have avoided the infringement; (iii) information, materials instructions or specifications that are themselves infringing which are provided by or on behalf of Client or which Client's requests or requires DTTILLP to use; or (iv) the use of DTTILLP's Deliverables in a manner not agreed to hereunder; (b) of confidentiality obligations under clause 10 which is directly and solely attributable to DTTILLP; (c) fraud or willful misrepresentation of DTTILLP Provided that Client shall give DTTILLP written notice of any such claim and sole control over the defence of any such claim.

Representations and Warranties

Each Party hereby represents and warrants to the other Party that:

- data or information received under the Contract shall be kept segregated from data of other clients;
- each Party shall strictly comply with laws in India as applicable to such party respectively;
- the arrangement contemplated under this Agreement is purely on a non-exclusive basis;
- it is duly organised and validly existing under the laws of its incorporation;

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- it has full capacity, power, and authority to enter into, and to observe and perform this Contract and the transactions contemplated hereunder, and it has obtained all necessary consents, permits and authorisations as may be necessary to do so;
- this Contract, once executed by all Parties, will constitute legal, valid, and binding obligations of such Party, enforceable against it in accordance with its terms;
- the execution and delivery of this Contract by such Party, and the performance of the obligations of such Party under this Contract, does not and will not conflict with, and is not likely to result in: (i) a breach of any condition or provision of its constitutional documents or any agreement or instrument to which it is a party or by which it or any of its assets or properties is bound; or (ii) breach of any Applicable Laws, or any decree, order, judgment or award binding upon it or any of its assets or properties;
- the present arrangement under this Contract adequately demarcates the roles and responsibilities between the Parties.

Miscellaneous

- This Contract is the entire agreement between the parties with respect to the Services and supersedes all prior agreements, proposals, understandings, representations, or discussions. The terms of this GBT shall prevail to the extent of a conflict between the GBT and the EL. If we have signed or sign any vendor onboarding documents or data room access terms or purchase order, you acknowledge that those are only to meet your procedural or administrative requirements and they do not increase our scope of work or liability or grant you any more rights than are stated in this Contract. This Contract may only be modified in writing expressly stating the intent of the parties to modify this Contract. If we or you, as the case may be, have not sought to strictly enforce any term of this Contract, it does not operate as a waiver in that or any other instance.

- We are not liable for any representation or warranty that is not expressly set out in this GBT. We will not be liable for any Losses arising out of your use of the Services for any purpose other than as set out in the EL.

- You and we may both be subject to laws prohibiting bribery and corruption as well as internal organizational policies and codes on anti-bribery and corruption. In the performance of this Contract, each party will comply with such applicable laws and their respective codes. In connection with the Services, each of us agree not to offer, promise, or give financial or other advantage to another person with the intention of inducing such a person to perform improperly or to reward improper behavior for your benefit, in each case, in violation of the Prevention of Corruption Act, 1988 and any other similar laws to which each of us is subject.

- We and you will each comply with our respective obligations under the applicable data protection laws to the extent in connection with the Contract and the Services either we or you store, process, or transfer any personal data to which data protection laws apply (“Personal Data”). We will use any Personal Data provided by you or on your behalf, in relation to the Services in compliance with legally required obligations applicable to us and, where relevant, only in accordance with lawful and reasonable instructions from you. Where Personal Data is not required for performance of the Services, you are encouraged to redact the documents such that Personal Data is not made available to us. You represent that you have the required consents from the data subject for use of the Personal Data in relation to this Contract. Any unwarranted disclosure(s) of Personal data by either parties under this Contract shall be the sole responsibility of such party making such unwarranted disclosure(s).

- Any clause that by its reasonable implication is intended to survive or be performed post the expiry or termination of this Contract (such as those in relation to the Fees (to the extent unpaid), Limitation of Liability, Indemnity, Use and Disclosure of Deliverables, Governing Law and Jurisdiction), will survive the expiry or termination of this Contract.

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- No person who is not a party to this Contract other than a Deloitte Entity, Client and DTTL shall be entitled to enforce any of its terms. This Contract can be varied by the Parties without any third party's consent.
- We have no responsibility to monitor events occurring after the date of the Services nor to update any Deliverable.
- Nothing contained herein will prevent or restrict us from providing services to other clients (including services which are the same or similar to the Services).
- No party may assign or otherwise transfer this Contract without the prior express written consent of the other.
- If any provision or part of this Contract is found by a court of competent jurisdiction or other competent authority to be unenforceable, illegal, or void, it shall not affect the remainder of the Contract, but such unenforceable, illegal or void provision or part shall be deemed modified to the extent necessary to render it enforceable, preserving to the fullest extent permissible the intent of the parties under this Contract.
- The headings in this Contract are for convenience only and shall not affect the interpretation of this Contract.
- Except as instructed otherwise in writing, each of us may assume that the other approves of properly addressed fax, email (including email exchanged via Internet media) and voicemail communication of both sensitive and non-sensitive documents and other communications concerning this Contract, as well as other means of communication used or accepted by the other. It is recognized that the Internet is inherently insecure, and that data can become corrupted, communications are not always delivered promptly (or at all) and that other methods of communication may be appropriate. Electronic communications are also prone to contamination by viruses. Each of us will be responsible for protecting our own respective systems and interests and, to the fullest extent permitted by law, will not be responsible to the other on any basis (whether in contract, statute, tort or otherwise) for any loss, damage or omission in any way arising from the use of the Internet or from access by any Deloitte Entity to your networks, applications, electronic data or other systems.
- We may refer to the Services we have performed, to present our experience and credentials along with your name and/or logo for the limited purpose of internal use and/or in the proposals to our existing/prospective clients without the prior written consent of VPS Lakeshore.
- This Contract, including all matters relating to it, shall be governed by the laws of India without giving effect to the choice of law principles thereof and the parties submit to the exclusive jurisdiction of the courts of law in Kerala and their appeal courts.

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